

SENATE No. 1252

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a right to freedom from doxing.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No. 1252

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 1252) of Rebecca L. Rausch for legislation to establish a right to freedom from doxing. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1116 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a right to freedom from doxing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 11H of chapter 12 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in lines 2 and 3, after the word “threats”, each
3 time it appears, the following word:- , doxing.

4 SECTION 2. Chapter 214 of the General Laws is hereby amended by inserting after
5 section 3B the following new section:-

6 Section 3C. Action for doxing; liability

7 (a) As used in this section, the following words shall have the following meanings unless
8 the context clearly requires otherwise:

9 “Close relation”, a current or former spouse or domestic partner, parent, child, sibling,
10 stepchild, stepparent, grandparent, any person who regularly resides in the household or who
11 within the prior 6 months regularly resided in the household, any person with a significant
12 personal or professional relationship, or a family pet.

13 “Disclosure”, the dissemination, distribution, circulation, sharing, posting, publishing,
14 transmittal, or release of information, including through electronic means.

15 “Doxing”, the knowing disclosure of personal identifying information of a person without
16 that person’s consent that is intended to cause stalking, physical harm to person, or serious
17 property damage, or to cause the person about whom the information pertains to reasonably fear
18 for the physical safety of themselves or a close relation, and which causes, whether directly or
19 indirectly either: (i) stalking, physical harm to person, or serious property damage; or (ii) the
20 person about whom the information pertains to reasonably fear for the physical safety of
21 themselves or a close relation.

22 “Personal identifying information”, a person’s biometric data, home or work address,
23 electronic mail address, home phone or cell phone number, Social Security number, driver’s
24 license number or state-issued identification card number, license plate number, financial
25 account number or credit or debit card number, or medical, financial, education, consumer, or
26 employment information or records, in combination with that person’s name, prior legal name,
27 alias, photograph or likeness, mother's maiden name, or date or place of birth; which that person
28 has not made readily apparent to the public, or which that person has not authorized another
29 person or organization to make readily apparent to the public.

30 (b) Doxing shall be unlawful.

(c) A person who is a target of doxing may pursue a cause of action for doxing, as defined in this section. The action may seek injunctive relief, special and general damages, and attorneys' fees and costs. The plaintiff in such action shall prove doxing occurred by a preponderance of the evidence. Notwithstanding any general or special law to the contrary, the parent or legal guardian of an unemancipated minor child shall be liable for any judgment rendered against such minor pursuant to this section.

(d) A plaintiff who proves by a preponderance of the evidence that doxing was motivated by the plaintiff's or the plaintiff's close relation's race, color, religion, ethnicity, national origin, citizenship status, sex, gender, sexual orientation, gender identity or expression, physical or mental health condition, or disability shall be entitled to up to treble damages in addition to any other remedy.

(e) It shall not be a violation of this section for a person to disclose personal identifying information for the purpose of:

(1) reporting conduct reasonably believed to be unlawful;

(2) reporting conduct reasonably believed to constitute a crime to a law enforcement officer or a law enforcement agency;

(3) publishing, disseminating, or reporting conduct by a public official, law enforcement officer, or law enforcement agency that is reasonably believed to be unlawful or otherwise an abuse of authority;

(4) engaging in lawful and constitutionally protected activity as it pertains to speech, assembly, press, or petition, including to address a matter of public concern; or

(5) investigating or prosecuting a violation of this section.